

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

Present:

**Mr. Justice Md. Moinul Islam Chowdhury**

**Civil Revision No.2287 of 2004**

Fatik Moral being dead his legal heirs 1(a)  
Khoda Box Moral and others

----- Defendant-Appellant-Petitioners

=Versus=

Kader Ali Molla and others

----- Plaintiff-Respondent-Opposite Parties

Mr. Abul Kalam Mainuddin, Advocate

----- For the Petitioners

Mr. Md. Abdur Rashid with

Mr. M.A. Gaffar, Advocates

----- For the Opposite Party Nos. 2-10

Heard on 17.07.2017, 18.07.2017 and

**Judgment on 09.08.2017**

At the instance of the Present-defendant-appellant-petitioners,  
Fatik Moral being dead his legal heirs 1(a) Khoda Box Moral and  
others, this Rule has been issued calling upon the opposite party  
Nos.1-10 to show cause as to why the impugned judgment and decree  
dated 22.03.2004 passed by the learned Special District Judge and  
Divisional Special Judge, Khulna in Title Appeal No.269 of 1990  
dismissing the appeal and affirming the judgment and decree dated  
07.08.1990 passed by the learned Assistant Judge, Dhumuria, Khulna  
in Title Suit No.21 of 1988 should not be set aside.

The relevant facts for disposal of this Rule, *inter alia*, are that the predecessor of the present-opposite party Nos.1 to 10 Chatur Ali Molla (now deceased) being dead filed the Title Suit No.21 of 1988 in the court of the learned Assistant Judge, Dhumuria, Khulna for declaration of title and recovery of khas possession upon the suit land described in the Schedule of the plaint. The case in the plaint is that the suit land measuring .58 acres appertaining to C.S. Khatian No.534, S.A. Khatian No.563 in Mouja Fournia, Upa Zila- Dumuria, District- Khulna was owned by Prasanna Gosh, Janmeswar Gosh, Madan Gosh, Goshal Gosh and Amullya Gosh as the superior landlord, who settled the land in favour of Haripada Gosh by executing and registering Kabuliyat on 12.12.1947. The said Haripada Gosh sold the suit land to Rajendra Nath Gosh on 14.02.1949 and delivered possession. Subsequently, Bejori bala Dashi, wife of Goshal Gosh settled .19 acres to Pachi Dashi by a settlement dated 19.07.1949 but as almost at the same time the aforesaid Rajendara Nath executed a kabuliyat in favour of Pachi Dashi on 24.08.1949, accordingly, the S.A. Khatian was published. Rajendra Nath Gosh thereafter, transferred on 24.01.1984 to one Santosh Kumar, who in turn sold to the plaintiffs on 25.10.1987 but the original documents were destroyed duration the Liberation War, 1971. The predecessor of the present-defendant-petitioner namely, Fatik Moral forcefully built four

huts on 30.08.1984 despite serious objection and resistance by Sontosh Kumar but they threatened to kill him and could illegally evict them from the possession thus, the suit was filed.

The predecessor of the present-petitioner Nos.1 to 4 as the defendants contested the suit by filing a written statement contending, inter-alia that one Kalipada Gosh was the original owner of the suit land, who died leaving behind three sons namely, Dip Chan Gosh, Tofan Gosh and Parbati Gosh. In course of succession the suit land was owned by Janmenjoy and Prasanna in equal shares and in course of inheritance Ganga Charan Gosh and Sudha Rani became the owners, who orally agreed to sale the suit land at a consideration of Taka 2,000/- in 1372 B.S. On receipt of Taka 500/- handed over possession but no document could be registered by him but subsequently his son Sudha Rani executed and registered a sale deed on 23.04.1977. One Ajit Kumar as the grandson of Prasanna sold .19 decimals to the defendant Nos.3 and 4 and delivered possession but no registered deed was executed however, Ajit Kumar executed a sale deed subsequently on 14.11.1988 in favour of the defendant Nos.3 and 4. The defendant Nos.3 and 4 eventually became the owner of the suit land and possessing the same without any trouble but without taking any initiative to correct the S.A. Khatian.

After hearing the parties and also considering the evidence, the learned trial court decreed the suit by his judgment and decree dated 07.08.1990. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No.269 of 1990 in the court of learned District Judge, Khulna which was heard by the learned Divisional Special Judge, Khulna on transfer who by his judgment and decree dated 22.03.2004 dismissed the appeal by affirming the judgment and decree passed by the trial court. This revisional application has been filed challenging the legality of the said impugned judgment and decree passed by the learned appellate court and the Rule has been issued thereupon.

Mr. Abul Kalam Mainuddin, the learned Advocate appearing with the learned Advocate Mrs. Anjumanara Khanam for the petitioners, submits that the plaintiff asserted that Haripada Gosh took settlement of the suit land by executing kabuliyat on 12.12.1947 in favour of the C.S. recorded tenant which was unilateral document and without prove of acceptance of the kabuliyat by the landlords in any way cannot be said that settlement was effected and both the courts below did not notice that Haripada Gosh who was cleaver member of the same family adopted device to grab the land of innocent relatives by executing unilateral kabuliyat which was beyond the knowledge of the C.S. recorded tenant and on the basis of that fraudulent kabiliyat

the subsequent transferees did not acquire any right, title and interest of the suit land and in not taking notice of the said important point of law both the courts below have committed an error of law resulting in an error in the decision occasioning failure of justice.

The learned Advocate further submits that the present-petitioners have been in possession and there is no dispute between the parties, thus, there is no cause of action. Moreover, no consideration was passed from Santosh Kumar and Rajendra Gosh, therefore, no title has been passed from Santosh Kumar Gosh to Chatur Ali Molla, as such, the present-plaintiff-opposite parties did not get any entitlement upon the suit land thus, the Rule should be made absolute.

The Rule has been opposed by the present opposite party Nos.1-10.

Mr. Abdur Rashid. the learned Advocate, appearing along with Mr. M.A. Gafur the learned Advocate, submits that the learned trial court after considering and examining the documentary and oral evidence by way of deposition came to a lawful conclusion to decree the suit in favour of the present-plaintiff-opposite parties regarding the title and recovery of khas possession upon the suit land and the learned appellate court concurrently found that the plaintiffs could prove their own case as per the requirement of law, as such, there is

no error of law committed by the learned court below therefore, no interference from this Court is called for.

He also submits, that the plaintiff-opposite parties produced as Exhibit-3 a deed dated 14.02.1949, Exhibit-3(Kha) dated 24.01.1984 in order to show that the valid transfer from Rajendra to Santosh thereafter, to Chatur Ali Molla through valid document. He also submits that out of the total suit land measuring .58 acres the plaintiff-opposite parties are in absolute possession upon the suit land measuring .46 acres as mentioned in Schedule-Ka but the present-defendant-petitioners forcefully entered upon the land Schedule “Kha” measuring 12 decimals as the trespasser, therefore, the plaintiffs have conclusively proved the necessity for recovery of khas possession but the present-petitioners obtained the present Rule by misreading the court, as such, the Rule should be discharged.

Considering the above submissions made by the learned Advocates of the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with the Annexures therein and also considering the materials in the lower courts record, it appears to me that the present-opposite parties as the plaintiffs filed the title suit claiming for title and recovery of khas possession upon the suit land measuring 12 decimals out of the suit .58 decimals which have been described in the plaint as

Schedules- (Ka) and (Kha) respectively. The plaintiffs adduced as documentary evidence which have been exhibited regarding the C.S Khatian and S.A. Khatian, record of right in favour of the present-plaintiffs. Exhibits-3, 3(Ka), 3(Kha) and 3(Gha) have been produced to show transfer of the suit land from Rajendra through Sontash Gosh to Chatur Ali Molla upon the total suit land which have been supported by the deposition of the P.W. On the other hand, the present-petitioners as the defendants as Exhibits-Ka, Ka(1), Ka(2) which are the supporting documents in favour of the present-petitioners from Ajit Gosh, Nimay Dash Gosh and others.

From the above factual aspects of this case, it has taken a decision as to entitlement as well as the possession upon .12 decimals out of total land measuring .58 decimals. I have carefully examined the documents given by the respective parties and I found that the plaintiffs adduced and produced sufficient evidence to show their entitlement upon total measuring .58 decimals and also proved to show the evidence that the predecessor of the present-defendant-petitioners have forcefully entered into the land measuring .12 decimals which belonged to the predecessor of the present-plaintiff-opposite parties. The evidence of the defendant-petitioners could not satisfy as to their claim of ownership through an oral gift which was subsequently registered by the successors of the original owner. The

evidence in support of the defendants' case are not substantial and sufficient to prove their ownership upon the suit land, therefore, it appears to this Court that the predecessor of the present-petitioners illegally entered into the suit land of the present-plaintiff-opposite parties.

Regarding the submissions of the learned Advocate for the present-petitioners as to the kabuliyat without Dakhila, I am of the view, that the kabuliyat and both registered deeds by the superior landlords in order to settle the land. Moreover, the record of right on the basis of the said kabuliyat indicates a right vested upon the present-plaintiff-opposite parties. Therefore, I am satisfied that the present-plaintiff-opposite parties could prove their own case by sufficient oral and documentary evidence.

Now I am inclined to examine the judgment and decree passed by the courts below. The learned trial court came to a lawful conclusion to decree the suit in favour of the plaintiff-opposite parties on the basis of the following finding:

“বাদীপক্ষ স্বীকার করিয়া-ছে যে, বিবাদীগণ নালিশী .৫৮ শতক জমির ম-ধ্য .১২ শতক জমি-ত জোর পূর্বক ঘর নির্মাণ করিয়া আ-ছে। উক্ত ঘর নালিশী জমির দক্ষিণ পূর্ব কোণায় অবস্থিত। ইহা উভয় পক্ষ স্বীকার করিয়া-ছে। বিবাদীগণ ১৯৭১ সাল হই-ত নালিশী জমি-ত ভোগ দখলকার আ-ছে ইহার সমর্থ-ন কোন দালিলিক বা মৌখিক সাক্ষ্য নাই। সাক্ষ্য প্রমান হই-ত দেখা যায় যে, বিবাদীগণ উক্ত .১২ শতক জমি-ত ৭/৮ বৎসর যাবৎ আ-ছে। উক্ত থাকার পিছ-ন কোন আইন সম্মত ভিত্তি



নাই। সুতরাং, নালিশী জমি-ত বিবাদীরা বেআইনী অনুপ্র-বশ হই-ত-ছ।  
যাহা উ-চছদ যোগ্য।”

The learned appellate court also came to a lawful conclusion by finding concurrently in favour of the plaintiff-opposite parties on the basis of the following finding:

“অতপরঃ বাদী এই মামলা আনয়ন করিয়া-ছ। ২৮/২/৮৮ ইং তারিখ অর্থাৎ বেদখল হওয়ার ১২ বৎসরের মধ্যে মোকাদ্দমা আনয়ন করিয়া-ছ। বাদী - রেসন-ডন্ট প-ক্ষর এই বক্তব্য অনুযায়ী দেখা যায় যে, রা-জন্ম হই-ত বাদী পর্যন্ত ব্যক্তিগ-ণর নালিশী জমি-ত নিরবিচ্ছিন্ন স্বত্ব ছিল এবং বেদখল হওয়ার ১২ বৎসরের মধ্যে মোকাদ্দমা আনয়ন করায় বর্তমান আকারে অএ মোকাদ্দমা চলিতে কোন বাধা নাই।”

In view of the above discussions and examinations of the judgment and decree passed by the learned courts below I consider that the learned appellate court committed no error of law by finding concurrently to dismiss the appeal filed by the present-defendant-petitioners and there is no failure to consider or read over the evidence both oral and documentary evidences by way of deposition of the witnesses. I am, therefore, not inclined to interfere into the judgment and decree passed by the learned appellate court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The ad-interim order of stay granted at the time of issuance of the Rule upon the operation of the impugned judgment and decree is hereby recalled and vacated.

The office is directed to communicate this judgment and order to the concerned court immediately and the office is also directed to send down the lower courts' record at once.